

HOUSE BILL 55

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 40; Title 54 and Title 55, relative to criminal
offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-309(b), is amended by adding the following new subdivisions:

(5) Litters or trespasses upon any real or personal property of another person with the intent to unlawfully intimidate another from the free exercise or enjoyment of any right or privilege secured by the constitution or laws of the state of Tennessee; or

(6) Litters or trespasses upon any real or personal property of another person with the intent to unlawfully intimidate another because that other exercised any right or privilege secured by the constitution or laws of the United States or the constitution or laws of the state of Tennessee.

SECTION 2. Tennessee Code Annotated, Section 39-17-309, is amended by adding the following new subsection:

() As used in this section, "litters" means places, drops, or throws garbage, refuse, rubbish, unsolicited flyers, or other waste material on any public or private property without permission.

SECTION 3. Tennessee Code Annotated, Section 39-17-309(d), is amended by deleting the subsection and substituting:

(1) A violation of subdivisions (b)(1)–(4) is a Class D felony.

(2) A violation of subdivision (b)(5) or (6) is a Class A misdemeanor.

(3) A violation of subsection (c) is a Class A misdemeanor.

SECTION 4. Tennessee Code Annotated, Title 39, Chapter 16, Part 6, is amended by adding the following new section:

(a) A law enforcement officer may ask a person to identify themselves if the officer has reasonable suspicion to believe that the person has violated or is violating a state law or local ordinance.

(b) Pursuant to the law enforcement officer's reasonable suspicion, the officer may ask the suspect to provide the suspect's name verbally or to otherwise provide the suspect's name by other means.

(c) A person commits an offense who intentionally refuses to give the person's name to a law enforcement officer who has lawfully detained or arrested the person and requested the information.

(d) A person commits an offense who intentionally gives a false or fictitious name to a law enforcement officer who has lawfully detained or arrested the person.

(e) A violation of subsection (c) or (d) is a Class C misdemeanor.

(f) A person's failure or inability to produce a physical form of identification or driver license to a police or peace officer requesting identification is not a violation of subsection (c) or (d) if the person attempts to otherwise comply with the officer's request to provide the person's identity verbally or in any other manner.

SECTION 5. Tennessee Code Annotated, Title 39, Chapter 16, Part 6, is amended by adding the following new section:

(a) A person commits an offense who intentionally approaches, within twenty-five feet (25'), a law enforcement officer who is lawfully engaged in the execution of the officer's official duties after the officer has ordered the person to stop approaching or to retreat.

(b) It is an affirmative defense to a violation of subsection (a) that the lawful order was not received or understood by the person and was not capable of being received or understood under the conditions and circumstances that existed at the time of the issuance of the order.

(c) A violation of subsection (a) is a Class B misdemeanor.

SECTION 6. Tennessee Code Annotated, Title 55, Chapter 8, Part 2, is amended by adding the following new section:

(a) A person commits an offense who, on the streets of any municipality, roads of any county, or the highways of this state, transports another in the cargo area of a box truck.

(b) A violation of subsection (a) is a Class B misdemeanor.

(c) As used in this section, "box truck" means a moving van or other vehicle that is manufactured with an enclosed cargo area that is connected to the passenger area with a one-piece design or attached to the chassis with two-piece construction, and the cargo area:

(1) Is designed primarily for the transportation of property; and

(2) Does not have seats or safety belts designed to accommodate a passenger.

SECTION 7. Tennessee Code Annotated, Title 39, Chapter 17, Part 3, is amended by adding the following new section:

(a) It is an offense to place a sign, signal, or marking over a highway or to affix or attach a sign, signal, or marking to a bridge, overpass, or tunnel without written authorization from the entity that maintains the highway, bridge, overpass, or tunnel.

(b) A violation of subsection (a) is a Class B misdemeanor.

SECTION 8. Tennessee Code Annotated, Section 40-7-118(c), is amended by adding the following new subdivision:

(3) The peace officer has probable cause to believe the person committed an offense, regardless of whether the offense was committed in the peace officer's presence.

SECTION 9. Tennessee Code Annotated, Section 40-7-118(k), is amended by redesignating the subsection as subdivision (k)(1) and adding the following:

(2) Whenever an officer makes a physical arrest for a misdemeanor and the officer determines that a citation should not be issued as provided in subsection (c), the officer shall note the reason for not issuing a citation on the arrest ticket. An officer who, on the basis of facts reasonably known or reasonably believed to exist, determines that a citation should not be issued as provided in subsection (c) shall not be subject to civil or criminal liability for false arrest, false imprisonment, or unlawful detention.

SECTION 10. This act takes effect July 1, 2025, the public welfare requiring it.